

CENTRAL INTELLIGENCE AGENCY**32 CFR Part 1900****Public Access to Documents and
Records and Declassification
Requests****AGENCY:** Central Intelligence Agency.**ACTION:** Final rule.**§ 1900.25 Fees for records services.**

(a) Search, review, and duplication fees will be charged in accordance with the schedule set forth in paragraph (c) of this section for services rendered in responding to requests for Agency records under this part. To the extent possible, the most efficient and least costly methods will be used to comply with requests for documents made under the FOIA. Records will be furnished without charge or at a reduced rate whenever the Coordinator determines that a waiver or reduction is in the public interest because it is likely to contribute significantly to public understanding of the operations or activities of the United States government and is not primarily in the commercial interest of the requester. The Coordinator shall consider the following factors in making his determination:

- (1) Whether the subject of the requested records concerns the operations or activities of the United States government; and, if so,
- (2) Whether the disclosure of the requested documents is likely to contribute to an understanding of United States government operations or activities; and, if so,
- (3) Whether the disclosure of the requested documents will contribute to public understanding of United States government operations or activities; and, if so,
- (4) Whether the disclosure of the requested documents is likely to contribute significantly to public understanding of United States government operations and activities; and,
- (5) Whether the requester has a commercial interest that would be furthered by the requested disclosure; and, if so,
- (6) Whether the disclosure is primarily in the commercial interest of the requester.

(b) The Coordinator may also waive or reduce the charge whenever he determines that the interest of the government would be served thereby. In addition, fees shall not be charged where they would amount, in the aggregate, for a request or for a series of related requests, to less than \$6.00.

(c) Denials of requests for fee waivers or reductions may be appealed by writing to the Chairman of the Information Review Committee, via the Coordinator. Requests for fee waivers or reductions or appeals of such decisions will not be considered after a requester has given his commitment to pay fees and/or processing costs have been incurred by the CIA.

(d) In order to protect the requester and the Agency from large, unexpected fees, when the anticipated charges will amount to more than \$25.00 and the requester has not indicated his willingness to pay applicable fees, the processing of the request shall be suspended until the requester indicates his willingness to pay. The requester shall be notified and asked for this commitment to pay all reasonable search and duplication (and when appropriate, review) fees. At his option, the requester may indicate in advance a dollar limitation to the fees he is prepared to pay. In such an event, the Coordinator shall initiate a search of the system or systems of records deemed most likely to produce relevant records, instructing the system managers to discontinue the search as soon as the stipulated amount has been expended. Where an advance limit has not been stipulated, the Coordinator may, at his discretion or at the behest of the requester, compile an estimate of the search fees likely to be incurred in processing a request, or of such portion thereof as can readily be estimated. The requester shall be promptly notified of the amount and be asked to approve its expenditure and guarantee payment thereof. The request shall be cancelled after 60 days if no response is received.

(e) In those cases where the Coordinator estimates that the fees will exceed \$250.00 and the requester has no history of payment, an advance deposit

of up to 100 percent of the estimated fees will be required. In all cases where there is reasonable evidence that the requester may possibly fail to pay the fees which would be accrued by processing his request, an advance deposit of 100 percent of the estimated fees will be required. The notice or request for an advance deposit shall extend an offer to the requester whereby he is afforded an opportunity to revise the request in a manner calculated to reduce the fees. Dispatch of such a notice shall suspend the running of the period for response by the Agency until a reply is received from the requester.

(f) Except for requests that are for a commercial use, the Agency will not charge for the first two hours of search time or for the first 100 pages of reproduction. However, a requester or associated requesters may not file a series of multiple requests, which are merely discrete subdivisions of the information he actually seeks, for the purpose of avoiding or reducing applicable fees. When the Coordinator reasonably believes that a requester or a group of requesters acting in concert, is attempting to break a request down into a series of smaller requests solely for the purpose of evading the assessment of fees, the Coordinator may aggregate any such requests and charge accordingly.

(g) The schedule of fees for services performed in responding to requests for CIA records is established as follows:

- (1) For each one quarter hour, or fraction thereof, spent by non-professional personnel in searching for a record, \$2.50;
- (2) For each one quarter hour, or fraction thereof, spent by professional personnel in searching for a record, \$4.50;
- (3) For each one quarter hour, or fraction thereof, spent by professional personnel in reviewing a record in response to a FOIA request, which is primarily commercial, \$4.50;
- (4) For each on-line computer search, \$11.00;
- (5) For each off-line (batch) computer search of Central Reference Files, \$27.00;
- (6) For all other off-line computer searches of Agency files, \$8.00 per minute of Central Processing Unit (CPU) time;
- (7) For copies of paper documents in sizes not larger than 8 1/2 x 14, \$0.10 per copy of each page;
- (8) For duplication of non-paper media (film, magnetic tape, diskette, etc.) or any document that cannot be reproduced on a standard office copier, actual direct cost; and

(g) For copies of reports, maps, reference aids, and other Agency publications, actual costs.

(h) Inasmuch as the Agency's systems of records are decentralized, several computer searches may be required to process a request, depending upon its scope. The computer search costs given in paragraphs (g)(4) through (6) of this section, do not include whatever manual search time is needed to determine whether the records located are in fact responsive to the request.

(i) Search fees are assessable even when no records pertinent to the requests, or no releasable records are found, provided the requester has been advised of this fact and he has, notwithstanding, agreed to incur the costs of search. Individuals associated with or otherwise making requests on behalf of any organization or other entity or person shall be jointly and severally liable with such party for all applicable search, review, and reproduction costs incurred.

(j) For requests which have accrued search and duplication fees in excess of \$250.00, or where there is reasonable evidence that the requester may possibly fail to pay the accrued fees, then, at the discretion of the Coordinator, the requester may be required to pay the accrued search and duplication fees prior to the actual delivery of the requested records; otherwise, the requester shall be billed for such fees at the time the records are provided. Payment shall be remitted by check or money order, made payable in U.S. dollars to the Treasurer of the United States, and shall be sent to the Coordinator. No appeals shall be accepted or any additional records services provided to the requester or associated requester until the requester and associated requesters have paid all outstanding charges for services rendered under this CFR part or corresponding CFR part for other government agencies or departments. In cases of requesters associated with, acting in concert with, or on behalf of any other individual or organization, such requesters, individuals and organizations shall be jointly and severally liable for all applicable charges.

(k) With the exception of requesters seeking documents for a commercial use, section (4)(A)(iv) of the Freedom of Information Act, as amended, requires agencies to provide the first 100 pages of duplication and the first two hours of search time without charge. Moreover, this section prohibits agencies from charging fees to any requester, including commercial use requesters, if the cost of

collecting a fee would be equal to or greater than the fee itself. These provisions work together, so that, except for commercial use requesters, the Agency will not begin to assess fees until after providing the specified free search and reproduction. If the amount of the chargeable fees is equal to or less than the cost of the Agency of billing the requester and processing the fee collected, no charges would result. The elements to be considered in determining the "cost of collecting a fee" are the administrative costs to the Agency of receiving and recording a requester's remittance, and processing the fee for deposit in the Treasury Department's special account. The per-transaction cost to the Treasury to handle such remittances will not be considered in the Agency's determination.

(1) For purposes of these restrictions on assessment of fees, the word "pages" refers to paper copies of a standard Agency size which will normally be "8 1/2 x 11" or "11 x 14." Thus, requesters would not be entitled to 100 microfiche or 100 computer diskettes, for example, but rather such microfiche, diskettes, or other computer output having a dollar value equivalent to 100 pages of paper copies (i.e., \$10.00).

(2) Similarly, the term "search time" in this context has, as its basis, manual search. To apply this term to searches made by computer, the Agency will provide computer searches under § 1900.25(c)(4) through (6) having a dollar value equivalent to two (2) hours of professional search time (i.e., \$36.00).

(l) There are four categories of FOIA requesters: "commercial use" requesters; "educational and non-commercial scientific institution" requesters; "representatives of the news media" requesters; and, "all other" requesters. The FOIRA prescribes specific levels of fees for each of these categories:

(1) *"Commercial Use" Requesters:* When the Agency receives a request for documents for commercial use, it will assess charges which recover the full direct costs of searching for, reviewing for release, and duplicating the records sought. Requesters must reasonably describe the records sought. Commercial use requesters are not entitled to two hours of free search time nor 100 free pages of reproduction of documents. The Agency will recover the cost of searching for and reviewing records even if there is ultimately no disclosure of records.

(2) *"Educational and Non-commercial Scientific Institution" Requesters:* The Agency will provide documents to requesters in this category for the cost of

reproduction alone, excluding charges for the first 100 pages. To be eligible for inclusion in this category, requesters must show that the request is being made as authorized by and under the auspices of a qualifying United States institution and that the records are not sought for commercial use, but are sought in furtherance of scholarly (if the request is from an educational institution) or scientific (if the request is from a non-commercial scientific institution) research. Requesters must reasonably describe the records sought.

(3) *"Representatives of the News Media" Requesters:* The Agency shall provide documents to requesters in this category for the cost of reproduction alone, excluding charges for the first 100 pages. To be eligible for inclusion in this category, a requester must meet the criteria in § 1900.3(q), and his or her request must not be made for a commercial use. In reference to this class of requester, a request for records supporting the news dissemination function of a requester shall not be considered to be a request that is for commercial use provided that the requester meets the requirements specified in § 1900.3(q). Requesters must reasonably describe the records sought.

(4) *"All Other" Requesters:* FOIA requesters who do not fit in any of the categories above will be charged fees which recover the full reasonable direct cost of searching for and reproducing records that are responsive to the request, except that the first 100 pages of reproduction and the first two hours of search time shall be furnished without charge. Moreover, requesters asking for records about themselves will continue to be treated under the CIA fee provisions of the Privacy Act of 1974 which permit access to records without charge.